JABIL	14-MT80-GEN-002-H			
	Non-Disclosure Agreement			
	Revision	H	Released Date	October/07/2020

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of the date of final signature below (the "Effective Date") between Jabil Inc., on behalf of itself and its Affiliates (collectively "Jabil") and the company identified below (the "Company") (Jabil and the Company are referred to herein each individually as a "Party" and collectively as the "Parties").

The Parties seek to evaluate potential business opportunities with one another (the "Purpose"). To facilitate that Purpose, either Party (the "Discloser") may provide the other Party (the "Recipient") with its Confidential Information (defined below). Therefore, the Parties agree as follows:

1. **Definitions.**
   (a) "Affiliates" mean any legal entity that is controlled by, or is under common control with, the referenced Party.
   (b) "Confidential Information" means all information and materials disclosed to the Recipient, in whatever format, directly or indirectly, in connection with the Purpose of this Agreement, including but not limited to, current and future product information, pricing, discounts, credits, contract terms, designs, tooling, specifications, financial and other business information, business plans, current or potential customer details, employee details, strategies, marketing and advertising plans, research results, and intellectual property.
   (c) "Protection Period" means the period beginning the Effective Date and ending ten (10) years from the date of last disclosure of Confidential Information, except that with respect to trade secrets of the Discloser, the Protection Period shall continue indefinitely until such time as such trade secrets are no longer subject to protection under applicable law.

2. **Protection of Confidential Information.**
   The Recipient shall:
   (a) Protect the Confidential Information during the Protection Period using the same degree of care as it uses to protect its own confidential information of like nature but no less than a reasonable degree of care in accordance with industry best practices;
   (b) Use the Confidential Information only in connection with the Purpose;
   (c) Disclose the Confidential Information only to such employees or agents that need to be engaged in furtherance of the Purpose, under confidentiality terms that are at least as restrictive as those provided for under this Agreement; and
   (d) Not duplicate, modify, reverse engineer, or create derivative works of any Confidential Information.

3. **Excluded Information.** This Agreement imposes no obligation upon a Recipient with respect to Confidential Information which (a) was known to the Recipient before receipt from the Discloser; (b) is or becomes publicly available through no fault of the Recipient; (c) is rightfully received by the Recipient from a third party without a duty of confidentiality; or (d) is independently developed by the Recipient without a breach of this Agreement.

4. **Permitted Disclosure.** If a Recipient is required by a government body or court of law to disclose Confidential Information, the Recipient agrees to give the Discloser reasonable advance written notice so that the Discloser may contest the disclosure or seek a protective order. Any such disclosure shall not relieve the Recipient of its obligations contained herein.

5. **No Warranties.** All Confidential Information is provided "as is" and all representations and warranties, whether express or implied, are hereby disclaimed. The Discloser does not warrant the accuracy or completeness of the Confidential Information and will not be liable for any loss relating to the use of the Confidential Information or any errors therein.

6. **Term and Termination.** This Agreement shall be effective from and after the Effective Date and may be terminated by either Party at any time upon ninety (90) days written notice to the other Party. The Recipient's obligations under this Agreement shall survive termination of this Agreement and shall remain intact until expiration of the Protection Period.

7. **Return or Destruction of Confidential Information.** Upon written request of the Discloser, the Recipient will promptly return or destroy all Confidential Information and, upon the Discloser's request, provide written certification of such destruction. Any Confidential Information that cannot be returned or destroyed or deleted will remain confidential, subject to the terms of this Agreement.

8. **Ownership of Confidential Information.** Confidential Information shall remain the exclusive property of the Discloser. Neither Party shall acquire any intellectual property rights of the other Party under this Agreement.

9. **No Commitment.** This Agreement imposes no obligation on either Party to exchange Confidential Information or to purchase, sell, license, transfer or otherwise make use of any technology, services or products.

10. **Export Restrictions.** Each Party agrees to strictly comply with all applicable export laws and regulations.

11. **Injunctive Relief.** Each Party asserts and acknowledges that its Confidential Information constitutes a valuable and unique asset. The Recipient agrees that the Discloser will suffer irreparable harm in the event of breach of any of the terms of this Agreement, for which monetary damages may not provide a sufficient remedy. In the event of any existing or anticipated breach of this Agreement by the Recipient, the Discloser will be entitled to seek injunctive relief, specific performance, and other available legal and/or equitable remedies from a court of competent jurisdiction, and the prevailing Party in any such action shall be entitled to reasonable attorneys' fees and costs.

12. **Governing Law.** THIS AGREEMENT SHALL BE GOVERNED BY AND CONSTRUED UNDER THE LAWS OF THE STATE OF NEW YORK, WITHOUT APPLICATION OF CONFLICT OF LAWS PRINCIPLES.

13. **Entirety, Modification.** This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof, and supersedes any and all prior negotiations, understandings, and agreements between the Parties relating thereto. No modification or amendment of any of the provisions of this Agreement shall be binding unless it is in writing and signed by an authorized representative of each Party.

14. **Waiver, Assignment.** No failure or delay by either Party in exercising any right under this Agreement will operate as a waiver of any term or condition hereunder. Neither Party will assign or transfer any rights or obligations under this Agreement without the prior written consent of the other Party.

15. **Counterparts, Electronic Signature.** This Agreement may be executed in counterparts, and signatures exchanged by facsimile or other electronic means are enforceable to the same extent as original signatures.

Jabil Inc.,		**COMPANY:**	NIHVA Technologies Pvt Ltd.
By (Signature):		By (Signature)	
Printed Name	Mr. Nagaraj Kulkarni	Printed Name	Mr. Vijay Tarak
Title:	Sr. Manager Planning & Purchase	Title	Director
Address:	10560 Dr. Martin Luther King Jr. Street North	Address:	187, G-Block, Thermax Chowk, MIDC Chinchwad, Pune
City, State, Zip:	St. Petersburg, FL 33716	City, State, Zip:	St. Maharashtra 411019
Date:		Date:	08/09/2021
		Company Chop	

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